

CITIBANK, N.A. v. BRIAN CANNON
Case No. CL24-06685

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Plaintiff served this motion by mail. Defendant BRIAN CANNON's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

Should Plaintiff refile this motion, Plaintiff must personally serve the motion.

While the court appreciates the use of stipulations by Plaintiff's counsel in this manner, the practice compares to the use an impermissible confession of judgment without appearance by a named Defendant which fails to satisfy due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

WURM v. RUSSELL
Case No. CU23-05272

Demurrer

TENTATIVE RULING:

Defendant's demurrer to Plaintiff's complaint is OVERRULED as to the cause of action for malicious prosecution and SUSTAINED WITHOUT LEAVE TO AMEND as to the causes of action for intentional infliction of emotional distress and negligent infliction of emotional distress.

The demurrer to Plaintiff's first cause of action for malicious prosecution is overruled. To establish a cause of action for malicious prosecution, a plaintiff must demonstrate: 1) the defendant commenced or caused to be commenced a prior action that was pursued to a legal termination in the plaintiff's favor, 2) the action was brought without probable cause, and 3) the action was initiated with malice. (*Brennan v. Tremco* (2001) 25 Cal.4th 310, 313; *Sheldon Appel Co. v. Albert & Olier* (1989) 47 Cal.3d 863, 871-872; *Sierra Club Found. v. Graham* (1999) 72 Cal.App.4th 1135, 1147.) Plaintiff has adequately alleged these essential elements. Plaintiff alleged that Defendant filed a request for civil harassment restraining order containing allegations that Defendant knew were false at the time of filing. (Complaint, ¶¶ 3-4.) Lack of probable cause and

malice can be established from Defendant's alleged knowledge of the falsity of his allegations at the time they were made. This proceeding for a restraining order is alleged to have been "dismissed ... for lack of merit". (*Id.* at ¶ 5.)

The demurrer to Plaintiff's second cause of action for intentional infliction of emotional distress and third cause of action for negligent infliction of emotional distress is sustained without leave to amend. Both causes of action are barred by the litigation privilege. Any communication made in the initiation or course of any proceeding authorized by law is privileged. (Civ. Code § 47(b).) The litigation privilege applies to the communicative act of filing pleadings in litigation. (*Action Apartment Ass'n, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1248.) The privilege is **absolute**, even upon a showing of malice, barring all tort causes of action except a claim of malicious prosecution. (*Id.* at 1241-1242; *Hagberg v. Cal. Fed. Bank* (2004) 32 Cal.4th 350, 360; *Kimmel v. Golan* (1990) 51 Cal.3d 202, 209.)

The gravamen of Plaintiff's emotional distress causes of action is that "[t]he acts of Defendant in filing and prosecuting said Request for Civil Harassment ... were intended to cause and did cause Plaintiff to suffer great shame and embarrassment and great and severe emotional distress." (Complaint, ¶¶ 10, 13.) The conduct alleged to have caused Plaintiff's emotional distress is explicitly alleged to be the filing and prosecution of the request for civil harassment restraining order. (*Ibid.*) The conduct is privileged, barring all torts other than malicious prosecution.

Plaintiff requests the opportunity to amend the complaint but does not explain how he can do so in a manner that would state a cause of action and not be barred by the litigation privilege. A court does not automatically grant leave to amend in the absence of **both** a specific request to amend and an explanation of how the complaint could be amended to cure the deficiencies raised by the demurrer. (*CAMSIIV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542.)

JACOB STYKEL v. FCA US, LLC and DODGE CHRYSLER JEEP RAM OF VACAVILLE
Case No. CU24-09788

FCA's Motion for Summary Judgment

TENTATIVE RULING

Defendant FCA US, LLC ("FCA") moves for summary judgment, or in the alternative summary adjudication, in its favor against Plaintiff JACOB STYKEL's complaint alleging causes of action for violation of the Song-Beverly Consumer Warranty Act (the "Act") and fraudulent inducement. Summarized, Plaintiff alleges that he purchased a 2020 Ram 3500 (the "Vehicle") under FCA's express warranty, but the Vehicle has defects such that FCA has not conformed it to warranty after a reasonable number of repair attempts. Further, the Vehicle has an engine defect that FCA did not disclose to Plaintiff prior to purchase.